

Plaintiff shall provide legal support for her position that the pleadings are legally sufficient or, in the alternative, how they may be further amended to cure any legal insufficiencies.

After meeting and conferring, Defendants shall, 10 days before the continued hearing date, set above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the Court a declaration stating the parties have agreed that Plaintiff will file an amended pleading/claim for damages before the date set forth above; or
- (3) file with the court a declaration stating how the parties met and conferred and identifying the specific objections in the demurrer and supporting memorandum of points and authorities that the parties were unable to resolve.

The Court will not accept further briefing.

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CASE #	CASE NAME	HEARING NAME
CVME2401231	TARQUINI VS FOUR WINDS ENTERPRISES INC.	MOTION TO STRIKE

c GRANTED; NO OPPOSITION FILED

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CASE #	CASE NAME	HEARING NAME
CVME2500794	FOX VS GENERAL MOTORS, LLC	MOTION FOR ATTORNEY'S FEES

Tentative Ruling: GRANTED

Award fees of \$13,095.00.

Costs were sought via memorandum of costs; Defendant did not file a motion to tax costs.

Plaintiff Sheila Fox brought this Song-Beverly action regarding a 2022 Chevy Trailblazer that had brake, radio and infotainment defects. The complaint, filed 1/17/25, asserts: (1) breach of implied warranty of merchantability; and (2) breach of express warranty. On 1/21/26, Plaintiff filed a notice of settlement.

Plaintiff moves for attorney's fees of \$19,994 plus a .1 multiplier of \$1,999.40, and costs of \$1,722.33, for a total of \$23,715.73. Plaintiff contends that Defendant refused to meet and confer about the fees. Defendant failed to make any formal settlement offers, requiring Plaintiff to litigate. Plaintiff asserts that the fees are reasonable. She argues that any challenge must be to specific entries.

Defendant contends that this was a streamlined case resolved under AB 1755, and nothing more than initial disclosures were provided when the case settled on October 24, 2025. It complains that the bulk of the fees sought relate to this motion and a non-existent motion to strike costs. It argues the court should deny the motion as untimely since the parties settled on 10/24/25. It otherwise challenges various entries. It contends the case does not warrant a multiplier. It requests the court strike costs as they are not reasonable.

In reply, Plaintiff contends that Defendant failed to object to the hourly rates. Plaintiff also concedes that Defendant did not file a motion to tax costs and withdraws the 6.4 hours spent. Plaintiff asserts that the case has not been dismissed, and therefore, the motion is not timely. Plaintiff then contends that Defendant improperly lumps fees together. She otherwise justifies each of the entries.

Defendant first contends that the motion is untimely pursuant to *Hatlevig v. General Motors* (2026) 118 Cal.App.5th 644. *Hatlevig* does not apply. After the plaintiff notified the court of a settlement, the court set a dismissal within 45 days (i.e. 8/15/23) unless the parties showed good cause why the case should not be dismissed; neither party demonstrated good cause. (*Id.* at 646-647.) The court held that the motion for attorney fees must be filed pursuant to Cal. R. Ct., rule 3.1702, which must be served and filed within the time for a notice of appeal, i.e. 60 days after service of notice of entry of judgment or 180 days after entry of judgment. (*Id.* at 649.) The court found that the date of notice of dismissal was 8/15/23, and the plaintiff untimely served his motion after the 180 days. (*Id.* at 650.) Here, there is no dismissal, thus, the time to file and serve the motion was not triggered. The motion is timely.

At issue in this motion is the reasonableness of Plaintiff's request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) Courts generally consider several factors in determining the reasonableness of a party's attorney's fees. These include "the nature of the litigation, the difficulty of the litigation, the attention given to the issues, the success of the attorney's efforts, and time consumed. [Citation omitted.]" (*PLCM Group, Inc. v. Drexler* (1999) 72 Cal.App.4th 693, 708.) Although a fee request ordinarily should be documented in great detail, the court is entitled to make its own evaluation of the reasonable worth of the work done considering the nature of the case and the credibility of counsel's declaration, unsubstantiated by time records and billing statements. (See *Weber v. Langholz* (1995) 39 Cal.App.4th 1578, 1587; see also *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1394.) Specifically in exercising its discretion, the Court may consider all of the facts and the entire procedural history of the case in setting the amount of a reasonable attorney's fee award. (*Bernardi, supra*, 167 Cal.App.4th 1379, 1394.)

Lodestar is the objective starting point to determine if attorney's fees are reasonable. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Id.*) Lodestar requires the court to determine what a reasonable rate and number of hours expended. (*Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

According to Plaintiff, the lodestar is as follows:

Attorney	Hourly Rate	Hours	Total
David Barry	\$695	9.3	\$6,463.50
Kristopher Storti	\$600	.7	\$420.00
C. Richard Lara	\$375	23.1	\$8,662.50
TOTAL		33.1	\$15,546.00

While Defendant does not challenge the hourly rates, they are excessive for a lemon law case. The court awards Barry \$600/hr, and Storti \$450/hr.

As to time spent, Defendant challenges the following time spent:

- Pre-Engagement Work: The court finds that counsel did not actually bill the client, as they are marked as non-billable. What counsel billed is reasonable.
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- Initial Disclosures: The court finds that the 3.0 spent on initial disclosures is excessive. A reasonable amount is 1.5 hours.
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- Client Communications: The court finds 4.3 hours communicating to the Plaintiff about the case status excessive. For example, Barry spent 2.0 hours drafting a single letter on 10/27/25. The court reduces Barry's time by 1.5 hours.
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- Attorney's Fee Motion: Lara spent 6.4, Storti spent .3, and Barry 2.0 on this motion. The court finds this is reasonable.
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Accordingly, the court awards the following:

Attorney	Hourly Rate	Hours	Total
David Barry	\$600	7.8	\$4,680.00
Kristopher Storti	\$450	.7	\$315.00
C. Richard Lara	\$375	21.6	\$8,100.00
TOTAL		33.1	\$13,095.00

There should be no multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchem v. Moses* (2001) 24 Cal.4t h 1122, 1132.) The party seeking enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) There is no basis for enhancement. This is merely double billing. Again, this was not a complicated case. As to the skill, again, there was no exceptional quality of work in this case to justify a multiplier.

As for costs, Plaintiff appropriately filed a memorandum of costs. (Cal. R. Ct. 3.1700.) Defendant did not file a motion to tax costs and cannot challenge costs via opposition to this motion.